



March 25, 2025

Assembly Member Rebecca Bauer-Kahan
Chair of the Assembly Privacy
and Consumer Protection Committee
Capitol Office, 1021 O Street, Suite 5210
Sacramento, CA 95814

Assembly Member Diane Dixon
Vice Chair of the Assembly Privacy
and Consumer Protection Committee
Capitol Office, 1021 O Street, Suite 5330
Sacramento, CA 95814

Assembly Member Christopher Ward
California State Assembly
Capitol Office, 1021 O Street, Suite 6350
Sacramento, CA 95814

RE: Ad Trade Letter in Opposition to California AB 1355

Dear Chair Bauer-Kahan, Vice Chair Dixon, and Assembly Member Ward:

On behalf of the advertising industry, we respectfully oppose AB 1355.¹ We and the companies we represent, many of whom do substantial business in California, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. AB 1355 is inconsistent with requirements in the California Consumer Privacy Act (“CCPA”) as well as other state privacy laws. Furthermore, AB 1355 would unreasonably limit the collection, use, and transfer of “location information” in ways that would inhibit Californians from receiving beneficial and even critical messaging and services. The Assembly Privacy and Consumer Protection Committee (“Committee”) should decline to advance the bill any further in the legislative process.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of responsible companies across the country. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² By one estimate, over 1.1 million jobs in California are related to the ad-subsidized Internet.³ Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on the non-exhaustive list of issues with the bill that we discuss in this letter.

¹ California AB 1355 (2025-2026 Reg. Sess.), located [here](#).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located [here](#).

³ *Id.* at 121-23.

I. AB 1355 is inconsistent with requirements in the CCPA and other state laws.

AB 1355 proposes to regulate “location information,” defined to include “information derived from a device or from interactions between devices, with or without the knowledge of the user and regardless of the technological method used, that pertains to or directly or indirectly reveals the present or past geographical location of an individual or device within the State of California with sufficient precision to identify street-level location information within a range of five miles or less,” including but not limited to IP addresses, automated license plate recognition information, GPS coordinates, cell-site location, information captured by traffic monitoring systems, and video or photographic images that are used as a probe images in a facial recognition technology system.⁴ The bill would subject this “location information” to limiting data minimization requirements, permitting processing of such information only to provide a good or service requested by a consumer, *and* subjecting such use to opt-in consent requirements.⁵

Most state privacy laws regulate the processing of “precise” or “specific” geolocation information, defined similarly across the states.⁶ AB 1355, however, proposes an entirely different definition for regulated “location information,” and that definition could capture almost all data collection in the ecosystem, beyond the types of data captured in other state laws. The CCPA itself also already regulates “precise geolocation information”—defined differently than AB 1355’s “location information”—and subjects the use and disclosure of precise geolocation information to opt-out requirements.⁷ If enacted, AB 1355 would stand in contradiction to the CCPA, creating a significantly confusing regulatory scheme for the overlapping location definitions and conflicting rights in both laws. AB 1355 would also require covered entities to maintain a “location privacy policy” in addition to the disclosures businesses already must maintain in their general privacy policies per the CCPA.⁸ The Committee should decline to advance AB 1355 because it would create an unclear approach to the collection and use of location information and precise geolocation information in California and add new notice requirements that would not have meaningful benefits for consumers.

II. AB 1355 would unreasonably limit the collection, use, and transfer of location information to California consumers’ and businesses’ detriment.

AB 1355 would prohibit the collection and use of “location information” unless doing so “is necessary to provide goods or services requested by” an individual and the individual has “expressly consented to the collection or use of their location information for that purpose.”⁹ The bill would also ban the sale of location information, and it would prohibit derivation of inferences

⁴ AB 1355 at Section 1, § 1798.90.75(b)(8).

⁵ *Id.* at Section 1, § 1798.90.76(a).

⁶ *See, e.g.* Conn. Gen. Stat. § 42-515(27); Va. Code Ann. § 59.1-575.

⁷ Cal. Civ. Code §§ 1798.121, 140(w). The CCPA defines “precise geolocation information” as “any data that is derived from a device and that is used or intended to be used to locate a consumer within a geographic area that is equal to or less than the area of a circle with a radius of 1,850 feet, except as prescribed by regulations.” *Id.* at § 140(w).

⁸ AB 1355 at Section 1, § 1798.90.77; *see also* Cal. Civ. Code 1798.130(a)(5).

⁹ AB 1355 at Section 1, § 1798.90.76(a).

from such information unless “necessary to provide the goods or services requested by the individual.”¹⁰ These broad prohibitions and limitations would unreasonably impede California consumers from receiving relevant, location-supported messaging if such messaging is not “necessary” to provide a good or service they already requested.

The collection and use of location information allows individuals to receive advertising and communications in the right time and at the right place. Location information is an integral component of advertising personalization and marketing that allows companies to reach consumers with relevant content and ads, enabling consumers to learn about goods and services that are near to them. This benefit is also especially meaningful for California’s small and medium-sized businesses, most of whom would not benefit from any exemption because they need their larger partners’ reach to attract and grow their own businesses. Without the ability to collect and use location data for advertising purposes, businesses will have a more difficult time, and face higher costs, reaching individuals with relevant marketing, and consumers will not be alerted to products and services they desire that are near to them.

In addition, AB 1355 would likely have unintended downstream effects on vital services. Location information powers important emergency notices, particularly AMBER alerts and severe weather notices, allowing these notices to be immediately displayed to users in the impacted area on any device they are using. If AB 1355 is enacted, Californians could lose access to emergency alerts for wildfires or other community emergencies. An exemption for these uses of location information would not solve this problem. Even if the Committee were to add an exemption to the bill for these emergency uses, the bill’s other strict limitations on location information collection and use would make this data lose much of its utility in the marketplace. As a result, this data would be less likely to be collected and used by entities overall, making it less procurable for use for emergency alert purposes. If AB 1355 is enacted, Californians would lose access to these important, real-time alerts, which rely on the disclosure of location information.

Location information also enables effective fraud prevention to protect consumers and businesses. Financial institutions, retailers, and others rely on anti-fraud services that include location information provided by third parties. The disclosure of location information allows anti-fraud and identity protection services to flag suspicious behavior and protect vulnerable communities. For example, companies can more easily detect credit card theft or fraud if they or their service providers have access to location information showing that a consumer is not in the location where a purchase is being made. The ability to use and disclose location information helps companies to detect and prevent fraudulent and illegal activity and reach out to consumers to confirm their purchases. As noted above, even if an exemption for fraud prevention is incorporated into AB 1355, the bill’s requirements would devalue location data in the marketplace. Entities would thus collect and use location information less, making this critical data set less available for this important anti-fraud and identity protection use. If passed, AB 1355 would impede the collection and use of location information for purposes that benefit Californians.

¹⁰ *Id.* at Section 1, § 1798.90.76(b).



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We ask you to refrain from advancing AB 1355 further in the legislative process, as its provisions would harm both consumers and businesses alike. Thank you for your consideration of this letter.

Sincerely,

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CC: Members of the Assembly Privacy and Consumer Protection Committee

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